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California moves to fund eviction defense as cities like Fresno develop protection programs

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The California Legislature approved a budget that sets aside $120 million to protect at-risk renters from eviction.

The plan would reduce displacement and homelessness by providing legal services to renters and homeowners who may face eviction or foreclosure, according to a news release by the office of Assemblymember Jesse Gabriel, D-Woodland Hills. The money would be dispersed over the next three years.

“Preventing evictions is crucial to addressing our homelessness crisis, particularly given the devastating impacts of COVID-19 on our most vulnerable renters,” the news release stated. Assemblymembers Gabriel, David Chiu and Miguel Santiago introduced the bill.

The Homelessness Prevention Fund will address “one of the root causes of the current homelessness crisis,” referring to eviction, according to Gabriel.

According to the bill, local governments or community based organizations could partner with the state or for sub grants to fund eviction protection programs. If a local government receives state funding for eviction defense, the money would be used to supplement, not replace, funding already allocated by the city or county for legal services.

The bill is waiting for Gov. Gavin Newsom’s approval. Similar bills have been passed in Maryland and Connecticut, the release said.

Eviction protection program approved in Fresno

With the statewide coronavirus eviction moratorium coming to an end in roughly two weeks, a growing number of cities, including Fresno, have begun to provide some form of legal defense for tenants.

Meanwhile, several California cities, including San Francisco and Los Angeles, have had some version of eviction defense programs for the past few years.

The Fresno City Council passed the Eviction Protection Program in May, outlining a framework to provide free legal counsel to low-income tenants facing potentially unlawful evictions.

The EPP was approved without key details; however, Councilmember Tyler Maxwell, who co-sponsored the ordinance, said the city accepted a bid from Emerzian Shankar Legal Inc. within the past week.

Maxwell said the city has also identified potential temporary funding for the program .

“Assuming that the city attorney’s budget doesn’t change and gets approved next Thursday, we have identified and will approve $750,000” for the program, Maxwell said.

The funding comes from the federal emergency rental assistance program, which ties the funds to a limited timeframe. According to Maxwell, 65% of the $750,000 would have to be used by Sept. 30, with the remaining 35% needing to be used by the end of the calendar year.

Maxwell said the city is looking into different avenues for future funding of the program, including American Rescue Plan Act funding, yet nothing has been decided.

Details on who specifically will qualify and how that will be determined are still underway, along with a timeline for the EPP's launch.

"I don't have an exact date," Maxwell said. "But what I can tell you is that the sense of urgency is felt by this council and we are doing everything we can to ensure that we start this program as soon as possible."

The EPP proposal and approval came after years of community-based organizations pushing for a full legal right to counsel and a proposal from Fresno City Council President Luis Chavez for a mediation-only approach.

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